

intended to satisfy the obligation by a bequest in his will, but before the will takes effect the marriage occurs, and he makes the like provision for her by act *inter vivos*. In such a case the Court presumes that the father did not mean to bestow *two* portions upon the daughter at the expense perhaps of his other children, but to substitute the one portion for the other. Equity therefore holds that the subsequent (b) advance is an *ademption* of the legacy. "Where," said Lord Eldon, "a parent or person standing *loco parentis* gives a legacy as a portion, and afterwards, upon marriage or any other occasion calling for it, makes an advance in the nature of a portion to the child, that will amount to an *ademption* of the gift by the will, and this Court will presume he meant to satisfy the one by the other" (c). Ademption, therefore, is where the will precedes, and the settlement follows.

If, again, a father by act *inter vivos* covenants to settle 1,000*l.* on the marriage of his daughter, and afterwards either by act *inter vivos* (d) or by will gives 1,000*l.* to the same daughter, here the Court leaning against double portions precludes the daughter (in the absence of evidence to the contrary) from taking both the marriage portion and also the subsequent gift or legacy, and puts her to her election which one of the two she will prefer (e). *Satisfaction* therefore, is where the settlement precedes and the gift or legacy follows. It might have been wise, as observed V. C. Wood, if the rule had never been applied where the settlement is anterior to the gift or will, as the testator or donor might well be said to know what had been previously done (f). But the law is established otherwise, and in general terms Satisfaction may be defined to be the donation

(b) A gift prior to the will is no ademption, unless it be especially contracted for, see *Taylor v. Cartwright*, 14 L. R. Eq. 176.

(c) *Trimmer v. Bayne*, 7 Ves. 515.

(d) *Jesson v. Jesson*, 2 Vern. 255; *Thomas v. Kemys*, 2 Vern. 348; *Keays v. Gilmore*, 8 I. R. Eq. 290.

(e) *Copley v. Copley*, 1 P. W. 147;

*Papillon v. Papillon*, 11 Sim. 642; *Warren v. Warren*, 1 B. C. C. 305, &c.; *Byde v. Byde*, 2 Eden, 19; *Sparkes v. Cator*, 3 Ves. 530, &c.; *Hinchcliffe v. Hinchcliffe*, 3 Ves. 516; *Weall v. Rice*, 2 R. & M. 251; *Bruen v. Bruen*, 2 Vern. 430.

(f) *Dawson v. Dawson*, 4 L. R. Eq. 513; *per V. C. Wood*.